

CV-25-010618 US BANK NATIONAL ASSOCIATION vs FUNKHOUSER , DEANNA K - Plaintiff's Motion for Summary Judgment or in the Alternative, Summary Adjudication - GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, Plaintiff's unopposed motion for summary judgment is GRANTED. Procedural Clarification There were two Defendants named in this case: Deanna K. Funkhouser and Lyn Funkhouser aka Lyn J. Funkhouser. Only Lyn answered the complaint. On June 9, 2026, default was entered against Deanna K. Funkhouser. This motion was filed on June 12, 2026. Although the moving papers could be clearer, based on the case as a whole and the information in the proposed order, the Court reads this motion as brought against only Defendant Lyn Funkhouser. The use of the term "Defendant" herein therefore refers specifically to that Defendant unless otherwise stated. Request for Judicial Notice Plaintiff asks the Court to take judicial notice of (1) 15 USC section 1666; and (2) 12 CFR section 202.12. Pursuant to Evidence Code sections 452 and 453, the request for judicial notice is GRANTED. Governing Law A plaintiff moving for summary judgment bears the initial burden of producing evidence sufficient to establish each element of the causes of action. (Code Civ. Proc., § 437c(p)(1); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) Once that burden is met, the burden shifts to the defendant to show that a triable issue of material fact exists. (Ibid.) Because summary judgment is a drastic remedy, the moving party's evidence is strictly construed and the opposing party's evidence is liberally construed, with all reasonable inferences drawn in favor of the opposing party. (Villacres v. ABM Industries, Inc. (2010) 189 Cal.App.4th 562, 575.) However, when a motion is unopposed, and the movant's evidence establishes each required element, summary judgment is appropriate. (See Code Civ. Proc., § 437c(c).) In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).) Merits of Summary Judgment Plaintiff has satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), by presenting evidence establishing each element of its claims and demonstrating the absence of any triable issue of material fact. The undisputed evidence shows that: (1) Defendant applied to Plaintiff for a credit card account and entered into a written credit card account agreement with Plaintiff (SUF No. 1); (2) Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement (SUF No. 2); (3) The card was used to make purchases, and Plaintiff complied with its obligations under the Agreement by paying vendors for all charges that were made on Defendant's account. (SUF No. 3); (4) Plaintiff maintained a computerized account of credits and charges (SUF No. 4); (5) Plaintiff has no record of any unresolved dispute regarding charges or credits related to the account (SUF No. 5); (6) Defendant defaulted in making the payments due under the terms of the cardmember agreement (SUF No. 6); (7) the last payment made on the account was on or around May 5, 2025 (SUF No. 7); and (8) Defendant owes Plaintiff a principal balance of \$15,503.75 (SUF No. 8). These undisputed facts establish the existence of a contract, Plaintiff's performance, Defendant's breach, and resulting damages, thereby entitling Plaintiff to judgment on its sole cause of action for breach of contract. (SUF Nos. 1-8.) Defendant filed an answer asserting affirmative defenses, but no opposition to this motion was timely filed, and no opposing evidence has been presented demonstrating the existence of a triable issue of material fact. Accordingly, Plaintiff is entitled to judgment as a matter of law. Code of Civil Procedure section 437c requires that the motion be granted. Memorandum of Costs Plaintiff has submitted a memorandum of costs that reflects costs of \$1,015.22, which amount comprises \$870 in filing fees and \$145.22 for service of process. The total for filing fees matches the Court's internal records, and the fees for service of process match the information on the proofs of service for the summonses. Conclusion Judgment shall be entered in favor of Plaintiff US Bank National Association against Defendant Lyn Funkhouser aka Lyn J. Funkhouser and defaulted Defendant Deanna K. Funkhouser in the principal amount of \$15,503.75, together with costs of suit in the amount of \$1,015.22, for a total judgment in the amount of \$16,518.97. Summary Adjudication In light of the Court's ruling granting summary judgment, Plaintiff's alternative request for summary adjudication is MOOT. Proposed Order and Proposed Judgment The Court will sign the proposed order and proposed judgment that were submitted with the motion. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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For the reasons set forth below, Plaintiff's unopposed motion for summary judgment is GRANTED.

Procedural Clarification

There were two Defendants named in this case: Deanna K. Funkhouser and Lyn Funkhouser aka Lyn J. Funkhouser. Only Lyn answered the complaint. On June 9, 2026, default was entered against Deanna K. Funkhouser. This motion was filed on June 12, 2026. Although the moving papers could be clearer, based on the case as a whole and the information in the proposed order, the Court reads this motion as brought against only Defendant Lyn Funkhouser. The use of the term "Defendant" herein therefore refers specifically to that Defendant unless otherwise stated.

Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of (1) 15 USC section 1666; and (2) 12 CFR section 202.12. Pursuant to Evidence Code sections 452 and 453, the request for judicial notice is GRANTED.

Governing Law

A plaintiff moving for summary judgment bears the initial burden of producing evidence sufficient to establish each element of the causes of action. (Code Civ. Proc., § 437c(p)(1); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Once that burden is met, the burden shifts to the defendant to show that a triable issue of material fact exists. (*Ibid.*)

Because summary judgment is a drastic remedy, the moving party's evidence is strictly construed and the opposing party's evidence is liberally construed, with all reasonable inferences drawn in favor of the opposing party. (*Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) However, when a motion is unopposed, and the movant's evidence establishes each required element, summary judgment is appropriate. (See Code Civ. Proc., § 437c(c).)

In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

Merits of Summary Judgment

Plaintiff has satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (p)(1), by presenting evidence establishing each element of its claims and demonstrating the absence of any triable issue of material fact. The undisputed evidence shows that: (1) Defendant applied to Plaintiff for a credit card account and entered into a written credit card account agreement with Plaintiff (SUF No. 1); (2) Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement (SUF No. 2); (3) The card was used to make purchases, and Plaintiff complied with its obligations under the Agreement by paying vendors for all charges that were made on Defendant's account. (SUF No. 3); (4) Plaintiff maintained a computerized account of credits and charges (SUF No. 4); (5) Plaintiff has no record of any unresolved dispute regarding charges or credits related to the account (SUF No. 5); (6) Defendant defaulted in making the payments due under

the terms of the cardmember agreement (SUF No. 6); (7) the last payment made on the account was on or around May 5, 2025 (SUF No. 7); and (8) Defendant owes Plaintiff a principal balance of \$15,503.75 (SUF No. 8).

These undisputed facts establish the existence of a contract, Plaintiff's performance, Defendant's breach, and resulting damages, thereby entitling Plaintiff to judgment on its sole cause of action for breach of contract. (SUF Nos. 1-8.)

Defendant filed an answer asserting affirmative defenses, but no opposition to this motion was timely filed, and no opposing evidence has been presented demonstrating the existence of a triable issue of material fact.

Accordingly, Plaintiff is entitled to judgment as a matter of law. Code of Civil Procedure section 437c requires that the motion be granted.

Memorandum of Costs

Plaintiff has submitted a memorandum of costs that reflects costs of \$1,015.22, which amount comprises \$870 in filing fees and \$145.22 for service of process. The total for filing fees matches the Court's internal records, and the fees for service of process match the information on the proofs of service for the summonses.

Conclusion

Judgment shall be entered in favor of Plaintiff US Bank National Association against Defendant Lyn Funkhouser aka Lyn J. Funkhouser and defaulted Defendant Deanna K. Funkhouser in the principal amount of \$15,503.75, together with costs of suit in the amount of \$1,015.22, for a total judgment in the amount of \$16,518.97.

Summary Adjudication

In light of the Court's ruling granting summary judgment, Plaintiff's alternative request for summary adjudication is MOOT.

Proposed Order and Proposed Judgment

The Court will sign the proposed order and proposed judgment that were submitted with the motion.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: